

Uniform Evidence Law

Evidence Act

Chapter 2 – Adducing Evidence

Chapter 2 – Adducing Evidence (ss 12–54) Chapter 2 – Adducing Evidence (ACT ONLY) (ss 12–54)

Part 2.1 – Witnesses (ss 12–46)

Division 1 – Competence and compellability of witnesses (ss 12–20) Division 1 – Competence and compellability of witnesses (ss 12–20) (ACT ONLY)

DIVISION 1 COMMENTARY

Last Review: 01/06/2023

[EA.Ch.2.Pt.2.1Div.1.30] Summary of this Division

View div 1 of the Evidence Act 1995 (Cth) within the legislation collection.

Summary of this Division

[\[EA.Ch.2.Pt.2.1Div.1.30\]](#)

Affidavits and written statements

[\[EA.Ch.2.Pt.2.1Div.1.60\]](#)

This Division deals with the adducing of evidence from witnesses. [Section 12](#) creates a presumption that all persons are competent to testify and may be compelled to do so. However, [s 13](#) provides that certain persons lack the capacity to give sworn evidence although they may give unsworn evidence in certain circumstances. A witness may not be compellable to testify in certain circumstances. Special rules apply to Heads of State, parliamentarians, judges and jurors and, in criminal proceedings, defendants, their spouses, partners, parents and children.

[\[EA.Ch.2.Pt.2.1Div.1.60\]](#) Affidavits and written statements

In *Hua Wang Bank Berhad v Federal Commissioner of Taxation (No 15)* (2013) 217 FCR 26; [2013] FCA 1124, Perram J stated at [5] that Pt 2.1, including Div 1, only applies to evidence given by witnesses in court. For discussion of this issue generally, see [EA.Ch.2.Pt.2.1.30].

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